

NON-DISCLOSURE AND CONFIDENTIALITY AGREEMENT BETWEEN SYNERGY GLOBAL LLP AND MERIDIAN GROUP PVT. LTD.

Between: **Synergy Global LLP** (Disclosing Party) and **Meridian Group Pvt. Ltd.** (Receiving Party)

Effective Date: 2022-09-25

Termination Date: 2020-11-02

Governing Law: the laws of the State of Delaware

1. Governing Law and Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware. Subject to Clause 1, the courts of Noida shall have exclusive jurisdiction over any dispute arising out of or relating to this Agreement.

2. Force Majeure

Neither Party shall be liable for any failure or delay in performance under this Agreement (other than payment obligations) to the extent caused by circumstances beyond the reasonable control of the affected Party, including but not limited to acts of God, war, terrorism, riots, epidemics, government actions, or internet or telecommunications failures. The affected Party shall promptly notify the other.

3. Subcontracting

Synergy Global LLP shall not subcontract any material part of the Services without the prior written consent of Meridian Group Pvt. Ltd.. Where subcontracting is permitted, Synergy Global LLP shall remain fully responsible for the performance of the subcontractor and shall ensure the subcontractor is bound by obligations equivalent to those in Clause 1 and Clause 2.

4. Term

This Agreement shall commence on the Effective Date, 2022-09-25, and shall continue until 2020-11-02, unless earlier terminated in accordance with Clause 1. Upon expiry, both Parties shall fulfil all outstanding obligations within fifteen (15) days.

5. Payment Terms

Meridian Group Pvt. Ltd. shall pay Synergy Global LLP a fee of Rs. 12,00,000 (Rupees Twelve lakh Only) for the Services rendered under this Agreement. Payment shall be made within thirty (30) days of receipt of an invoice. All amounts are exclusive of applicable taxes, which shall be borne by Meridian Group Pvt. Ltd.. Late payments shall attract interest at the rate of eighteen percent (18%) per annum.

6. Notices

All notices under this Agreement shall be in writing and delivered to the addresses set out in Schedule B by registered post, courier, or email with read receipt. Notices shall be deemed received: (a) if by registered post, five (5) days after posting; (b) if by courier, one (1) business day after delivery; (c) if by email, on the day sent, provided no delivery failure notice is received.

7. Audit Rights

Meridian Group Pvt. Ltd. or its authorised representative shall have the right, upon giving fifteen (15) days' written notice, to audit Synergy Global LLP's records relating to the Services and payments under this Agreement. Such audit shall be conducted during normal business hours and shall not unreasonably disrupt Synergy Global LLP's operations. The cost of the audit shall be borne by Meridian Group Pvt. Ltd., unless the audit reveals an overcharge of more than five percent (5%), in which case Synergy Global LLP shall bear the cost.

8. Dispute Resolution

Any dispute arising out of or in connection with this Agreement shall first be submitted to senior management of both Parties for resolution within thirty (30) days. If unresolved, disputes shall be referred to binding arbitration under the Arbitration and Conciliation Act, 1996. The seat of arbitration shall be Noida. The award shall be final and binding.

9. Assignment

Neither Party may assign or transfer any of its rights or obligations under this Agreement without the prior written consent of the other Party. Any purported assignment in violation of this clause shall be null and void. Notwithstanding the foregoing, either Party may assign this Agreement to an affiliate without consent, provided it gives thirty (30) days' prior written notice.

10. Termination

Either Party may terminate this Agreement by giving 30 days' written notice to the other Party. Either Party may terminate immediately upon written notice if the other Party commits a material breach that is not cured within thirty (30) days of receipt of written notice of such breach. Upon termination, Meridian Group Pvt. Ltd. shall pay for all Services rendered up to the date of termination.

11. Scope of Services

Synergy Global LLP shall provide to Meridian Group Pvt. Ltd. the following services as detailed in Schedule A attached hereto: project management, technical implementation, quality assurance, documentation, and post-deployment support. Any modification to the scope of services must be agreed in writing by both Parties.

12. Entire Agreement

This Agreement, together with all Schedules and Exhibits attached hereto, constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior negotiations, representations, warranties, and understandings of any kind, whether written or oral.

13. Intellectual Property

All intellectual property rights in deliverables created specifically for Meridian Group Pvt. Ltd. under this Agreement shall vest in Meridian Group Pvt. Ltd. upon full payment. Pre-existing intellectual property of each Party shall remain with that Party. Synergy Global LLP grants Meridian Group Pvt. Ltd. a non-exclusive, royalty-free licence to use any pre-existing intellectual property embedded in the deliverables solely for Meridian Group Pvt. Ltd.'s internal business purposes.

14. Non-Solicitation

During the term of this Agreement and for a period of twelve (12) months after its termination, neither Party shall directly or indirectly solicit or recruit any employee or contractor of the other Party who was involved in the performance of this Agreement, without prior written consent.

IN WITNESS WHEREOF

Disclosing Party

Synergy Global LLP

Signature: _____

Name: _____

Title: _____

Date: _____

Receiving Party

Meridian Group Pvt. Ltd.

Signature: _____

Name: _____

Title: _____

Date: _____